

Cloud Infrastructure Services Agreement

Contract ID: CNT-2025-0203

Date: April 1, 2025

Between: Meridian Holdings Group ("Customer") and NimbusTech Cloud Services Inc. ("Provider")

1. Service Description

The Provider shall deliver cloud infrastructure services including compute, storage, networking, and managed database services to support the Customer's business applications. The services will be hosted in the Provider's data centers.

2. Service Scope

2.1 Included Services

- Virtual machine provisioning and management
- Block and object storage
- Load balancing and CDN services
- Managed PostgreSQL and Redis database services
- Container orchestration (Kubernetes) platform
- DDoS protection and basic firewall services
- 24/7 infrastructure monitoring
- Monthly usage reporting

2.2 Excluded Services

- Application-level management and monitoring
- Data migration services (available as an add-on)
- Custom security configurations beyond standard offering
- Compliance-specific configurations (HIPAA, PCI-DSS)

3. Service Level Agreement

3.1 Availability

The Provider guarantees a monthly uptime percentage of 95.0% for all services, calculated as:

Uptime % = (Total Minutes - Downtime Minutes) / Total Minutes x 100

3.2 Scheduled Maintenance

The Provider may perform scheduled maintenance during the maintenance window (Sundays 02:00-06:00 UTC). Scheduled maintenance periods are excluded from uptime calculations.

The Provider will provide 48 hours advance notice for scheduled maintenance.

3.3 Service Credits

If monthly uptime falls below the guaranteed level:

Monthly Uptime	Service Credit
94.0% - 94.9%	5% of monthly fee
90.0% - 93.9%	10% of monthly fee
Below 90.0%	20% of monthly fee

Service credits are the Customer's sole and exclusive remedy for service level failures.

3.4 Support Response Times

Severity	Description	Response Time	Resolution Target
Critical	Complete service outage	2 hours	8 hours
High	Significant degradation	4 hours	24 hours
Medium	Minor impact	8 hours	72 hours
Low	General inquiry	24 hours	5 business days

4. Data Management

4.1 Data Storage

Customer data will be stored in the Provider's data centers. The Provider operates data centers in the following regions:

- North America (Virginia, Oregon)
- Europe (Frankfurt, Dublin)
- Asia Pacific (Singapore, Tokyo)
- South America (São Paulo)

The Customer may request a preferred region at the time of provisioning. However, the Provider reserves the right to relocate data between regions for operational purposes with 7 days notice to the Customer.

4.2 Data Backup

- Automated daily backups of managed database services
- Backup retention: 14 days
- The Customer is responsible for application-level backups

4.3 Data Deletion

Upon termination, the Provider will delete Customer data within 90 days. The Customer may request data export in standard formats within 30 days of termination.

5. Security

5.1 Physical Security

The Provider maintains physical security controls at all data centers including 24/7 security personnel, biometric access controls, and video surveillance.

5.2 Network Security

The Provider implements network security measures including perimeter firewalls, DDoS protection, and network segmentation between customers.

5.3 Security Certifications

The Provider maintains SOC 2 Type II certification. A copy of the most recent audit report is available upon request.

5.4 Security Incidents

The Provider will notify the Customer of confirmed security incidents affecting Customer data within 72 hours of confirmation.

5.5 Encryption

Data in transit is encrypted using TLS 1.2. Encryption of data at rest is available as an optional add-on service at additional cost.

6. Pricing

6.1 Monthly Fees

Services are billed monthly in arrears based on actual usage. Estimated monthly spend based on the Customer's requirements: \$45,000/month.

6.2 Payment Terms

Invoices are payable within Net 30 days. A late payment fee of 2% per month applies to overdue balances.

6.3 Price Changes

The Provider may adjust pricing with 30 days written notice. Price increases shall not exceed 15% per annum.

7. Term and Termination

7.1 Initial Term

This agreement has an initial term of 3 years commencing on the date of execution.

7.2 Renewal

The agreement will automatically renew for successive 2-year terms unless either party provides written notice of non-renewal at least 180 days before the end of the current term.

7.3 Termination for Convenience

During the initial term, neither party may terminate for convenience. After the initial term, either party may terminate with 180 days written notice.

7.4 Termination for Cause

Either party may terminate upon material breach that remains uncured for 45 days after written notice.

7.5 Transition Assistance

Upon termination, the Provider will provide transition assistance for 30 days at the Provider's then-current professional services rates.

8. Intellectual Property

All intellectual property in the Provider's services, including software, tools, and infrastructure, remains the exclusive property of the Provider. The Customer retains all rights to Customer data and applications hosted on the Provider's infrastructure.

9. Confidentiality

Both parties agree to maintain the confidentiality of the other party's proprietary information for the duration of this agreement and for 2 years thereafter.

10. Limitation of Liability

10.1 Cap

Each party's total aggregate liability under this agreement shall not exceed the total fees paid by the Customer in the 12 months preceding the claim.

10.2 Exclusions

Neither party shall be liable for indirect, incidental, consequential, special, or punitive damages, including lost profits, data loss, or business interruption.

11. Compliance

11.1 Legal Compliance

Each party shall comply with all applicable laws and regulations in the performance of this agreement.

11.2 Data Processing

The Provider processes Customer data as a data processor on behalf of the Customer. The Provider will process data only in accordance with the Customer's instructions as set forth in this agreement.

12. General Provisions

12.1 Governing Law

This agreement is governed by the laws of the State of California.

12.2 Assignment

Neither party may assign this agreement without the other party's prior written consent, except in connection with a merger, acquisition, or sale of substantially all assets.

12.3 Force Majeure

Neither party shall be liable for delays or failures caused by events beyond reasonable control, including natural disasters, war, terrorism, pandemics, or government actions.

12.4 Amendments

This agreement may be amended only by written agreement signed by both parties.

IN WITNESS WHEREOF, the parties have executed this agreement as of the date first written above.

For Meridian Holdings Group

For NimbusTech Cloud Services Inc.